



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 25, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202006547 regarding Police Officer Johnny Marquez, Tax No. 960876 (DADS No. 2021-23575)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions of Police Officer Marquez do not rise to the level of actionable misconduct. Police Officer Marquez was faced with a hostile crowd that refused the orders to disperse and instead hurled projectiles at the officers, including Police Officer Marquez. In the face of this threat, and in accordance with his training as member of the Strategic Response Group ("SRG"), Police Officer Marquez deployed his capsicum oleoresin spray ("OC spray") in the direction of a group of protesters.

Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Marquez receive no disciplinary action for the alleged violation of Patrol Guide Procedures 221-01 (Force Guidelines), 221-02 (Use of Force), and 221-07 (Use of Oleoresin Capsicum Pepper Spray Devices).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office

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